

**Stefani**

**v.**

**Stefani**

**(Case No. 199323)**

Ms. Stefani has filed a request for order putting at issue custody, visitation, child support, spousal support, and attorney fees. The motion was served, via e-mail. Attached to the proof of service is an email message from Ms. Lauser to Ms. Chase. The message requests confirmation that the Kinney Law Firm is agreeable to accepting service, via e-mail; however, that same message refers to Mr. Kinney having previously refused such service. Uncertainty exists on whether the motion has been properly served under California Code of Civil Procedure, section 1010.6 (Electronic Service of Documents). That concern is further warranted given the Respondent has yet to file a responsive pleading or the necessary income and expense declaration.

Petitioner should come prepared to address the issue of service as contemplated in section 1010.6. If service has been had, the Court will Order a responsive declaration be filed along with an income and expense declaration by Mr. Stefani. Additionally, each party is to file a proposed calculation for child and spousal support using one of the certified programs for doing so.

**Stock**

**v.**

**Stock**

**(Case No. 182983)**

Ms. Stock filed a request for order that seeks to change visitation between Mr. Stock and their minor daughter. The request asks that physical custody be awarded to Ms. Stock and that Mr. Stock have visitation on the 1<sup>st</sup>, 2<sup>nd</sup>, 3<sup>rd</sup>, and 4<sup>th</sup> weekends of the month from Thursday to Sunday.

Ms. Stock also raises issue with the child's school. She contends the school location has changed several times to accommodate Mr. Stock's significant other's schedule. Now that Mr. Stock and his significant other have reconciled, a request to change the child's school has again resurfaced. Ms. Stock also requests that the significant other not be the responsible adult that cares for the minor child in Mr. Stock's absence.